

25LBCV01830 25LBCV01830

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-03

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1. Motion

for Summary Adjudication

Defendant moves for summary adjudication of the fourth (breach of implied warranty of merchantability) and fifth (fraud – concealment) causes of action in Plaintiffs' complaint. Plaintiffs failed to timely file opposition papers.

Recently, in *Mandell-Brown v. Novo*

Nordisk Inc. (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a situation where a plaintiff failed to file an opposing separate statement prior to the hearing on the defendant's motion.

The Mandell-Brown Court noted, "Thus, if a plaintiff opposing summary judgment fails to file a separate statement, and the trial court reviews the moving papers and concludes the motion is not deficient on its face, it has discretion under subdivision (b)(3) to grant the motion, without first undertaking a detailed analysis of the supporting evidence to determine if a prima facie showing has been made as to one or more of the elements of each claim."

The Court has reviewed the moving papers and finds they are not deficient on their face. In light of the lack of opposition and an opposing separate statement, the Court grants the motion.

Recently, in 24LBCV02791 and myriad

other cases, Department S27 has admonished Plaintiffs' attorney as follows:

The Court notes that there have

been numerous motions for summary judgment and/or adjudication filed by Honda in various cases without opposition. The Court asks Plaintiff's attorney to dismiss any case or cause of action the plaintiff does not intend to pursue. Requiring the Court to rule on unopposed motions is not an efficient use of judicial resources.

Despite this admonishment, Plaintiffs have neither dismissed the causes of action nor opposed the motion. Again, the motion is granted.

2. Future

Discovery Motions

Defendant has a motion to deem RFAs admitted scheduled for hearing on 9/08/26 and a motion to compel responses to SROGs, FROGs, and RPDs scheduled for hearing on 10/13/26. The Court wishes to hear the motions together, and continues the hearing on the 9/08/26 motion to 10/13/26. The Court advises Counsel to be guided by its voluminous past rulings when meeting and conferring in connection with these motions, and the Court strongly encourages the parties to resolve the issues without the need for the 10/13/26 hearing. Defendant must take the matters off calendar if the parties resolve the issues.

Defendant is ordered to give notice.